
Notice of Delay — Unforeseen Ground Condition at Pier P4

Nandira River Bridge Project — Package NRB-4

Document Reference:	CTR-NRB4-0125
Date:	09-Nov-2022
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Contractor, Project Manager, Sagara Constructions Pvt. Ltd.
To:	Engineer, Meridian Engineering Consultants

Subject: Notice of Delay — Unforeseen Ground Condition, Pier P4 Supplementary Pile Group

We write further to Daily Progress Report DPR-1103-2022, recording that boring at pile position P4-N4, within the Pier P4 supplementary pile group, encountered a soft, compressible clay stratum at approximately 18.2m depth, inconsistent with the founding stratum indicated in the geotechnical information provided with the tender documents at this location.

Pursuant to Sub-Clause 20.1 and Sub-Clause 4.12 of the Conditions of Contract, we hereby give notice that this event constitutes a cause of delay for which we consider the Contractor entitled to an extension of the Time for Completion under Sub-Clause 8.4(b), the condition encountered being a physical condition which we consider could not reasonably have been foreseen having regard to the geotechnical information provided with the tender documents.

In accordance with Sub-Clause 4.12, boring has continued at the unaffected pile positions within the group; pile position P4-N4 remains suspended pending the Engineer's review. We are keeping contemporaneous records of the resulting impact on our programme and will submit fully detailed particulars within 42 days of this notice, in accordance with Sub-Clause 20.1.

We reserve our rights to claim an extension of time and any associated cost consequences arising from this event.

Regards,
Project Manager

Sagara Constructions Pvt. Ltd.